

24STCV17121 24STCV17121

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Case Number: 24STCV17121 Hearing Date: August 26, 2026 Dept: 529

MUNIZ V. MONARCH

LITHO, INC., ET AL.

motion for

protective order in favor of george lopez AND MOTION TO COMPEL THE DEPOSITION

OF DEFENDANT GEORGE LOPEZ

Date of Hearing: August

26, 2026 Trial Date: September 14, 2026

Department: 529 Case

No.: 24STCV17121

Moving Party: Defendant

George Lopez

Responding Party: Plaintiff

Juan Muniz

Meet and Confer: Yes

BACKGROUND

Plaintiff Juan Muniz ("Plaintiff")

alleges Defendant Hipolito Marchus Hernandez was negligently and recklessly

operating a vehicle owned by Defendant Monarch Litho, Inc., when he struck a

food truck Plaintiff was ordering from. The collision caused injuries to

Plaintiff.

Plaintiff commenced this action against

Defendants Monarch Litho, Inc., Hipolito Marcus Hernandez, and Does 1 through

50 (collectively "Defendants") on July 10, 2024. On August 28, 2025, Plaintiff amended the

complaint to replace Doe 1 with George Lopez, and Doe 2 with Robert Lopez. On October 10, 2025, Plaintiff filed a First

Amended Complaint ("FAC"). The FAC

alleges: Negligence, against Defendants Monarch Litho, Inc. and Hipolito Marcus

Hernandez; Negligent Entrustment, against Defendants, Monarch Litho, Inc., and

each of them; and Negligent Hiring, Supervision, and Retention, against

Defendants, Monarch Litho, Inc., and each of them.

[Tentative] Ruling

I.

Motion for Protective

Order in favor of Defendant George Lopez is GRANTED

II.

Motion to

Compel the Deposition of Defendant George Lopez is DENIED.

DISCUSSION

I.

MOTION TO COMPEL DEPOSITION

Defendant George Lopez moves for a

Protective Order declaring that Defendant George Lopez is unable to attend

deposition in this matter due to disability and health related issues. Defendant

makes the motion on the grounds that Plaintiff unreasonably asks Defendant

Lopez to sit for deposition in spite of Defendant's numerous attempts to meet

and confer on this issue regarding his inability to sit for deposition, for any

length of time.

Code of Civil Procedure section

2017.020 provides that "[t]he court shall limit the scope of discovery if it

determines that the burden, expense, or intrusiveness of that discovery clearly

outweighs the likelihood that the information sought will lead to the discovery

of admissible evidence." (CCP § 2017.020(a).) "The court may

make this determination pursuant to a motion for protective order by a party or

other affected person." (Id.) "This motion shall be

accompanied by a meet and confer declaration under Section

2016.040.” (Id.) The burden of proof is on the party

seeking the protective order to show “good cause” for the order he or

she seeks.¿ (Fairmont Insurance Co. v. Superior Court (2000)

22 Cal.4th 245, 255.)¿

Defendant Lopez argues Plaintiff noted

the deposition of Defendant Lopez to take place on July 29, 2026. However,

Defendant Lopez is 84 years old, permanently blind, and suffers from severe and

debilitating medical and psychiatric conditions that make participation in a

traditional deposition impossible. As a result, Defendant Lopez objected and

notified Plaintiff he was unable to attend as well as advised Counsel that

Defendant Lopez’s knowledge of the events is minimal at best and he also

suffers from memory issues. Defendant Lopez’s treating physician has provided a

detailed letter confirming that George cannot sit for more than 10 minutes

without needing to walk due to anxiety and restlessness, rarely leaves his

home, is completely blind, and suffers from treatment-resistant depression that

has left him in a precarious state of mental and physical health. (See Berman

Decl., Exh. A.) In addition, defendant claims that Robert Lopez, who was the

CEO and majority business handling partner, has already been produced and

deposed and answered all of Plaintiff’s questions.

In opposition, Plaintiff argues the

claim that Defendant George Lopez has no unique information to offer in this matter is disingenuous and logically flawed. Plaintiff contends this case is a family affair. The doctor and author of the note is Defendant Lopez's son, Jorge Lopez, MD and appears to be a general practitioner/family doctor with no apparent qualifications or expertise in determining an individual's capacity as it pertains to litigation. Additionally, neither Defense nor Dr. Lopez have identified exactly what condition justifiably prohibits Defendant George Lopez from sitting for deposition. Plaintiff notes throughout the litigation in this case, Defense has not once mentioned Defendant Lopez's capacity issues until the request for deposition. Plaintiff further notes others, including Defendant George Lopez's brother, Robert Lopez, have testified that Defendant George Lopez does have information regarding elements of this case. (See Salumbides Decl., Exh. 4, 88:11-18; 97:10-17.) Supervisor Angel Lopez and PMK Eddie Audelo have also testified that Defendant George Lopez has crucial evidence in this matter. As a result, Plaintiff argues Defendants have failed to show sufficient good cause to excuse Defendant George Lopez from deposition. As co-owner of Defendant Monarch, Plaintiff contends Defendant George Lopez would have the knowledge and made decisions that are pivotal in the continued litigation and trial of this case.

The court limits the testimony to

written, instead of oral, examination. (See CCP §2025.420(b)(6).) PTSD along with blindness are recognized disabilities under the ADA and would entitle a deponent to accommodation under Rules of Court, Rule. 1.100 (See also Gropen v. Superior Court (2023) 89 Cal.App.5th 1068.) The court notes the familial relationship between Defendant George Lopez and Dr. Lopez. However, Dr. Lopez notes he is the treating physician for Defendant George Lopez. (See Exh. 1.) Moreover, a family doctor would have knowledge of a patient's overall medical conditions including cardiovascular and pulmonary conditions as well as depression, anxiety, insomnia and phonophobia. The court also notes the photograph from 2022. However, as noted by Defendant, a photograph from four years ago is not an indication of Defendant George Lopez's condition now to sit down for an oral deposition.

Based on the foregoing, the motion for protective order is GRANTED. However, defendants should be aware that defendant George Lopez will be precluded from offering any live testimony at trial, given his representations about his health.

II.

MOTION TO COMPEL DEPOSITION

Plaintiff Juan Muniz moves this court

for an order compelling Defendant George Lopez and an order to set the deposition within five days from the date this motion is heard on the grounds

Defendant George Lopez is a named defendant and necessary party with crucial information relating to the elements Plaintiff is required to prove in this matter.

Based on the discussion above, the

court denies the motion to compel deposition of Defendant George Lopez.